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United States District Court, N.D. California, Eureka Division

LIGON

v.

META PLATFORMS INC.

Case No. 25-cv-03959-RMI

Decided April 28, 2026

Opinion of the court

Attorneys and Law Firms

BACKGROUND 1. Procedural History Plaintiff, proceeding pro se, originally filed this complaint in the United States District Court for the Northern District of Georgia on August 9, 2024. (Compl. 1.) The Georgia District Court transferred the case to this district based on the mandatory forum-selection clause in Defendant's Terms of Service, and this district received the case on May 7, 2025. (Order, Dkt. 24; Transfer Receipt, Dkt. 28.) The presiding judge at the time then granted Plaintiff leave to amend, and Plaintiff filed his First Amended Complaint ("FAC") on September 4, 2025. (Order, Dkt. 48; FAC, Dkt. 49.) Defendant filed its Motion to Dismiss on September 20, 2025, after which Plaintiff filed his response and Defendant filed its

Michelle Lynn Visser, Orrick, Herrington & Sutcliffe LLP, San Francisco, CA, Bradley Marcus, Pro Hac Vice, Orrick, Herrington & Sutcliffe LLP, Washington, DC, Jeffrey D. Horst, Kana Anne Ellis Caplan, Krevolin & Horst, LLC, Atlanta, GA, for Defendant

reply.¹ (Dkts. 50, 52, & 54.) The case was then reassigned to this court on November 17, 2025. (Order Reassigning Case, Dkt. 59.) Defendant filed an amended Notice of Motion to Dismiss, identifying this court as the adjudicating court, (dkt. 60), to which Plaintiff filed a response and request for oral argument, (dkt. 62). Defendant filed a response to argue that Plaintiff's second response was improper and should not be

ORDER ON MOTION TO DISMISS

considered.² (Dkt. 63.) The court then found that the Motion to Dismiss was appropriate for adjudication on the papers and vacated the hearing. (Dkt. 64.)

Louis L. Ligon III, Ligon For Liberty, Duluth, GA, Pro Se

Re: Dkt. Nos. 50, 60 ROBERT M. ILLMAN, United States Magistrate Judge Plaintiff Louis Ligon III brings this case against Defendant Meta Platforms, Inc., alleging that Defendant violated his civil rights and right to free speech by its actions during the 2024 election for Georgia State Senate. (Compl., Dkt. 1; First Amended Compl., Dkt. 49.) Now pending before the court is Defendant's Motion to Dismiss and request for judicial notice, (dkts. 50 & 51), re-noticed after this case was reassigned to this court following the consent of the parties, (dkt. 60). Plaintiff has filed his response, (dkt. 52), Defendant has replied, (dkt. 54), and the motion is ripe for adjudication on the merits. For the following reasons, the court GRANTS Defendant's Motion to Dismiss

2. Facts Alleged in the FAC Plaintiff registered with the Republican Party of Georgia and the Georgia Secretary of State's Office on March 7, 2024, to run as a Republican candidate for Georgia State Senator in District Seven. (FAC ¶ 7.) Defendant Meta Platforms, Inc. owns and operates the social media websites Facebook and Instagram. (FAC ¶ 4.) On May 6, 2024, Plaintiff signed a "Verification of Identity" form with Defendant to meet the advertising policy requirements for running political campaign ads on Defendant's platform Facebook. (FAC ¶ 8.) Plaintiff received a verification code on May 8 for additional vetting. (FAC ¶ 9.) On May 9, he created six political ads for his campaign for Georgia State Senate, which were planned to run for the next ten days through the early voting period leading up to the main statewide election on May 21, 2024, and were intended to be shown on Facebook to the approximately 150,000 residents of Georgia District Seven. (FAC ¶ 10.) Plaintiff paid Defendant \$653.00 for

the six advertisements and "verified, approved, populated, and scheduled the campaign ads to run starting May 10, 2024." (FAC ¶ 10.) The ads ran for a partial day on May 10, but the following day, Plaintiff received five emails from representatives of Defendant informing him that his ads were flagged because of "unspecified violations" of community standards.³ (FAC ¶ 11.) He was also told that his campaign ads and campaign Facebook page might be permanently suspended as a result. (FAC ¶ 11.) Plaintiff replied to the emails within 24 hours and requested information on the specific violations so that he could correct the problems quickly. (FAC ¶ 12.) He attempted to appeal through the links provided in the emails, but the links were nonfunctional. (FAC ¶ 33.) He received no response from Defendant, and his campaign ads, campaign pages, and personal profiles on Facebook and Instagram were permanently suspended the next day without any further explanation. (FAC ¶ 12–13.) The ads and campaign messaging continued to run without issue on other social media sites, including X and Truth Social. (FAC ¶ 14.) Plaintiff attempted to recreate his campaign pages on Facebook and Instagram after they were suspended, but these duplicate pages were also suspended with no explanation in May 2024. (FAC ¶ 19.) On May 21, 2024, Plaintiff filed an official election interference complaint against Defendant with the Georgia Secretary of State and the Georgia State Election Board. (FAC ¶ 16.) Plaintiff alleges that Defendant's permanent suspension of his personal Facebook profile caused him to lose hundreds of photos, communications with constituents, and administrative roles in three community groups, "causing significant personal and professional harm." (FAC ¶¶ 12, 15.) In addition, Defendant allegedly "engage[d] in a pattern of post-suspension harassment," including through sending him two identical emails on May 4, 2025, alleging new violations associated with the suspended accounts and ads and providing a non-functional link to appeal; sending him another email on May 20, 2025, alleging copyright violations associated with one of the suspended ads; and sending an email "on behalf of" Universal Music Group to Plaintiff on May 20, 2025, alleging that he had unlawfully used 45 seconds of a copyrighted song on his suspended campaign page and demanding the removal of the infringing content. (FAC ¶ 13.)

Plaintiff alleges that Defendant's suspension of his profile page and campaign ads was part of Defendant's partnership with "government-aligned entities, such as the Elections Infrastructure Information Sharing and Analysis Center ("EI-ISAC")," and with other fact-checking organizations like Politifact, which allegedly "disproportionately flag conservative content." (FAC ¶ 17.) Plaintiff also alleges that he was one of multiple conservative political candidates who faced the same unexplained suspensions. (FAC ¶ 21.) Because of his reliance on Defendant for effective advertising and outreach, Plaintiff argues that Defendant disrupted his campaign during a critical voting period, breaching its contractual obligations and violating both Plaintiff's rights and the rights of District Seven voters. (FAC ¶¶ 16, 18, 22–26.) Finally, he alleges that Defendant makes content moderation decisions based on "opaque

algorithmic processes” and a “nonfunctional appeal system,” (FAC ¶ 20), and that this lack of transparency or meaningful review “transforms these suspensions into a prohibited prior restraint on speech” and “necessitates comprehensive discovery to uncover the extent of Defendant’s unconstitutional practices.” (FAC ¶¶ 24, 20). 3. Causes of Action in the FAC Plaintiff brings eight causes of action against Defendant in the FAC. The first claim is for violation of Plaintiff’s First Amendment rights to free speech and political expression, alleging that social media platforms are modern public squares subject to the First Amendment; that Defendant targeted Plaintiff’s advertisements for their conservative viewpoints; that Defendant’s “extensive partnerships with EI-ISAC and government-influenced fact-checkers” render it a state actor; that Section 230 immunity does not apply because the claim is based on Defendant’s own content moderation decisions; and that Defendant’s suppression of Plaintiff’s advertisements was a “targeted effort to silence conservative political speech.” (FAC ¶¶ 27–31.) The second cause of action is for violation of Plaintiff’s Fifth Amendment procedural due process rights based on “Defendant’s failure to provide adequate notice or a functional appeal process for the suspensions of Plaintiff’s advertisements and accounts.” (FAC ¶¶ 32–34.) The third claim is brought under 42 U.S.C. § 1985(3) for conspiracy to deprive Plaintiff of his civil rights—he alleges that Defendant conspired with fact-checkers and “government-aligned entities” to deprive him of equal protection because of his conservative views. (FAC ¶¶ 35–

36.) Because Defendant’s conduct impacted his campaign, he also mentions interference with voting rights as part of this claim. (FAC ¶ 36.) He then repeats his argument that Section 230 immunity does not apply because the claim is based on Defendant’s own actions rather than third-party content. (FAC ¶ 37.) The fourth cause of action is brought pursuant to 42 U.S.C. § 1986 and alleges that Defendant is liable under this section because it had knowledge of the conspiracy to deprive Plaintiff of his rights and failed to prevent it (and that Section 230 immunity does not apply for the same reasons as above). (FAC ¶¶ 38–40.) Plaintiff’s fifth cause of action is for breach of contract. (FAC ¶ 42.) Plaintiff claims that Defendant entered into a binding implied contract with Plaintiff by accepting his payment of \$653.00 and approving his advertisements to appear for District Seven voters, that it impliedly promised fair and transparent enforcement, and that Defendant breached this contract when it refused to run his ads and suspended his account without explanation or opportunity to appeal. (FAC ¶¶ 41–43.) Claim six alleges that Defendant violated the implied covenant of good faith and fair dealing when it suspended Plaintiff’s accounts and advertisements in bad faith based on his conservative political viewpoints. (FAC ¶¶ 44–46.) The seventh cause of action is brought pursuant to 42 U.S.C. § 1981, claiming that Defendant’s suspension of Plaintiff’s ads and accounts “discriminated against Plaintiff in the making and enforcement of contracts ... based on his conservative political viewpoint, a protected characteristic under § 1981’s broad interpretation.” (FAC ¶¶ 47–48.) Finally, the eighth claim is brought for harassment and intentional infliction of emotional distress. (FAC ¶¶ 49–52.) This claim is based on Defendant’s “ongoing pattern of sending threatening and harassing emails after the permanent suspension of Plaintiff’s accounts,” despite knowing that Plaintiff had no access to the accounts and no way to appeal or address the alleged violations. (FAC ¶ 50.) According to the FAC, this conduct caused Plaintiff “severe emotional distress, including anxiety, mental anguish, and loss of quality family time,” which was worsened by “the loss of irreplaceable personal content and the public reputational harm from false allegations of policy and copyright violations.” (FAC ¶ 51.) This claim also requests punitive damages because Defendant’s actions were “intentional and malicious” retaliation for Plaintiff’s political speech. (FAC ¶ 52.)

Plaintiff requests multiple kinds of relief in his FAC. First, he requests a declaratory judgement that Defendant committed the violations alleged in all eight causes of action and is not protected by Section 230. (FAC at 24–25.) Second, he requests injunctive relief ordering Defendant to reinstate his campaign Facebook page, reinstate his personal Facebook page, reinstate his political advertisements, reinstate his personal Instagram page, immediately cease further suspensions or other actions against his accounts, immediately cease sending harassing emails based on alleged content violations, and “permit comprehensive discovery of internal algorithms.” (FAC at 25–26.) Third, Plaintiff requests monetary damages: \$2,500,000.00 in compensatory damages for the disruption of Plaintiff’s campaign, emotional distress, reputational harm, the cost of recreating his online presence, and the loss of his administrative roles in community groups; and \$10,000,000.00 in punitive damages for willful and malicious suppression of Plaintiff’s speech. (FAC at 26–27.) Finally, Plaintiff requests attorney’s fees and costs and “[s]uch further relief as the Court deems just, including discovery into Defendant’s algorithms to ensure transparency and prevent future harm.” (FAC at 27.)

LEGAL STANDARD Under Rule 12(b)(6) of the Federal Rules of Civil Procedure, a complaint may be dismissed for failure to state a claim for which relief may be granted. Rule 12(b)(6) requires dismissal when a complaint lacks either a “cognizable legal theory” or “sufficient facts alleged” in support of such a theory. *Godecke v. Kinetic Concepts, Inc.*, 937 F.3d 1201, 1208 (9th Cir. 2019) (citation omitted). A complaint contains sufficient factual allegations if it pleads enough facts to “state a claim to relief that is plausible on its face.” *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) (quoting *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 570 (2007)). In turn, a claim is plausible “when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged.” *Id.* at 678. Plausibility is a contextspecific task that requires the reviewing court to determine if the well-pleaded facts permit the court to infer more than the mere possibility of misconduct. *Id.* When evaluating a motion to dismiss, courts “accept factual allegations in the complaint as true and construe the pleadings

in the light most favorable to the nonmoving party.” *Manzarek v. St. Paul Fire & Marine Ins. Co.*, 519 F.3d 1025, 1031 (9th Cir. 2008). However, “allegations in a complaint ... may not simply recite the elements of a cause of action [and] must contain sufficient allegations of underlying facts to give fair notice and to enable the opposing party to defend itself effectively.” *Levitt v. Yelp! Inc.*, 765 F.3d 1123, 1135 (9th Cir. 2014) (quoting *Eclectic Props. E., LLC v. Marcus & Millichap Co.*, 751 F.3d 990, 996 (9th Cir. 2014)). Pro se pleadings are to be liberally construed, but they still must meet basic plausibility standards and provide the minimum factual basis necessary to give defendants notice of the claims against them. See *Turner v. Cnty. of Los Angeles*, 18 F. App’x 592, 596 (9th Cir. 2001) (“Even given the more generous pleading standards for pro se plaintiffs, [plaintiff] has failed to provide a minimum factual basis needed to provide notice to these defendants.”); *Ortez v. Washington Cnty.*, 88 F.3d 804, 807 (9th Cir. 1996) (pro se pleadings must be construed liberally on Rule 12(b)(6) motions, such that the court should determine whether the plaintiff would not be entitled to relief “under any state of facts he could prove”). When dismissing a claim, a court “should grant leave to amend even if no request to amend the pleading was made, unless it determines that the pleading could not possibly be cured by other facts.” *Lopez v. Smith*, 203 F.3d 1122, 1127 (9th Cir. 2000)

DISCUSSION A. Request for Judicial Notice Defendant requests that the court take judicial notice of three documents for the purposes of ruling on its Motion: a true and correct copy of the Meta Terms of

Service in effect at the time of the alleged events; a true and correct copy of the Instagram Terms of Use in effect at the time of the alleged events; and a true and correct copy of Meta's Advertising Standards in effect at the time of the alleged events. (Def.'s Request Judicial Notice, Dkt. 51; Duffy Decl. ¶¶ 5–7, Dkt. 50-1.) In general, courts cannot look beyond the four corners of the complaint and the attached exhibits when ruling on Rule 12(b)(6) motions to dismiss. *Swartz v. KPMG LLP*, 476 F.3d 756, 763 (9th Cir. 2007). However, courts may take judicial notice of outside information and may consider documents incorporated by reference. Courts

may judicially notice facts not subject to reasonable dispute that are (1) generally known in the trial court's territorial jurisdiction or (2) capable of accurate and ready determination by sources whose accuracy cannot be reasonably questioned. Fed. R. Evid. 201(b). Separately, courts may incorporate by reference documents that are not attached to the complaint but are central to the plaintiff's claim and are unquestionably authentic. See *Kniesel v. ESPN*, 393 F.3d 1068, 1076 (9th Cir. 2005) (finding that the incorporation by reference doctrine applies when “plaintiff's claim depends on the contents of a document, the defendant attaches the document to its motion to dismiss, and the parties do not dispute the authenticity of the document, even though the plaintiff does not explicitly allege the contents of that document in the complaint”). Defendant represents that all users of Facebook and Instagram must agree to the terms as a condition of using those services; it further represents that all users who advertise across its services are covered by the Advertising Standards, which are incorporated into the terms. (Duffy Decl. ¶¶ 3–4, 7.) Defendant has also represented that the documents attached to its motion are the terms of service/use and advertising standards in place during the events alleged in the complaint. (Duffy Decl. ¶¶ 5–7.) Plaintiff did not oppose the request for judicial notice or object to the authenticity of the documents. Defendant Meta Platform's Terms of Service and Instagram Terms of Use are publicly available webpages that are routinely judicially noticed in this district. E.g., *Scott v. Meta Platforms, Inc.*, No. 25-CV-09955-TSH, 2026 WL 593341, at (N.D. Cal. Mar. 3, 2026) (taking judicial notice of Meta's Terms of Service); *Lloyd v. Facebook, Inc.*, No. 21CV-10075-EMC, 2022 WL 4913347, at (N.D. Cal. Oct. 3, 2022) (incorporating by reference Meta's Terms of Service and Data Use Policy); *Moates v. Facebook, Inc.*, No. 22CV-04478-RFL, 2024 WL 2853976, at n.1 (N.D. Cal. Apr. 3, 2024) (incorporating by reference Meta's Terms of Service). Cf. *Al-Ahmed v. Twitter, Inc.*, 603 F. Supp. 3d 857, 869 (N.D. Cal. 2022) (judicially noticing Twitter's Terms of Service); *Zhang v. Twitter, Inc.*, No. 23-CV-00980-JSC, 2023 WL 5493823, at (N.D. Cal. Aug. 23, 2023) (same); *Huber v. Biden*, No. 21-CV-06580-EMC, 2022 WL 827248, at n.1 (N.D. Cal. Mar. 18, 2022) (same); *Coffee v. Google, LLC*, No. 20-CV-03901-BLF, 2021 WL 493387, at (N.D. Cal. Feb. 10, 2021) (taking judicial notice of Google's Terms of Service); *Matera v. Google, Inc.*, No. 15-CV-04062-LHK,

2016 WL 8200619, at (N.D. Cal. Aug. 12, 2016) (same). The Advertising Standards are incorporated into the terms and are similarly available to the public. Plaintiff does not dispute that the proffered Meta Terms of Service, Instagram Terms of Use, and Advertising Standards are authentic, and thus the court GRANTS the request and takes judicial notice of Meta's Terms of Service, Instagram's Terms of Use, and Meta's Advertising Standards.⁴ B. Section 230 Limits on Liability Defendant first moves to dismiss the FAC on the grounds that every claim in the complaint is barred by Section 230(c)(1) of the Communications Decency Act, 47 U.S.C. § 230(c)(1). Section 230, titled “Protection for private blocking and screening of offensive material,” contains the following provisions: “No provider or user of an interactive computer service shall be treated as the publisher or speaker of any information provided by another information content provider ... No cause of action may be brought and no liability may be

imposed under any State or local law that is inconsistent with this section.” 47 U.S.C. § 230(c)(1), (e)(3). Thus, Section 230(c)(1) immunity applies to “(1) a provider or user of an interactive computer service, (2) whom a plaintiff seeks to treat, under a [federal or] state law cause of action, as a publisher or speaker, (3) of information provided by another information content provider.” *Calise v. Meta Platforms, Inc.*, 103 F.4th 732, 738 (9th Cir. 2024) (quoting *Barnes v. Yahoo!, Inc.*, 570 F.3d 1096, 1100–01 (9th Cir. 2009), as amended (Sep. 28, 2009)) (alterations in original); accord *Vargas v. Facebook, Inc.*, No. 21-16499, 2023 WL 6784359, at (9th Cir. Oct. 13, 2023) (unpublished). The law thus seeks to limit liability for acts undertaken by interactive computer services pursuant to their role as publishers; a publisher “reviews material submitted for publication, perhaps edits it for style or technical fluency, and then decides whether to publish it,” and therefore traditional publishing conduct protected by section 230 includes “reviewing, editing, and deciding whether to publish or to withdraw from publication third-party content.” *Barnes*, 570 F.3d at 1102. Moreover, “any activity that can be boiled down to deciding whether to exclude material that third parties seek to post online is perforce immune under section 230.” *Fair Hous. Council of San Fernando Valley v. Roommates.Com, LLC*, 521 F.3d 1157, 1170–71 (9th Cir. 2008). In deciding whether Section 230 immunity applies, the

Ninth Circuit has not drawn a bright-line distinction between certain causes of action, nor mechanically asked whether the underlying facts concern third-party content. Instead, it has directed courts to “engage in a careful inquiry” to determine whether the “fundamental duty” invoked by the plaintiff “derives from the defendant’s status or conduct as a ‘publisher or speaker.’ ” *Est. of Bride by & through Bride v. Yolo Techs., Inc.*, 112 F.4th 1168, 1178 (9th Cir. 2024) (quoting *Barnes*, 570 F.3d at 1102), cert. denied *Est. of Bride v. Yolo Techs., Inc.*, 145 S. Ct. 1435 (2025). Thus, even where the conduct or claim at issue might involve publishing activities, section 230(c)(1) may not apply when the alleged duty does not arise from the defendant’s status as publisher or satisfaction of the duty would not require the defendant to engage in publishing conduct. It appears that neither party contests that Defendant is an interactive computer service provider, and many other courts have found Defendant to be an interactive computer service provider. See *Fed. Agency of News LLC v. Facebook, Inc.*, 432 F. Supp. 3d 1107, 1117 (N.D. Cal. 2020) (collecting cases). It is also not contested that the content at issue—Plaintiff’s campaign pages, his personal profiles, and his advertisements—was created by Plaintiff, not Defendant, and thus the content at issue is attributable to a third party creator.⁵ The first and third requirements for section 230(c)(1) limits on liability are thus met, and the court need evaluate only the second element for each claim: whether the causes of action seek to treat Defendant as a publisher or speaker. Defendant argues that all eight claims seek to hold it liable for its actions as a publisher because they are all based on Defendant’s decision to suspend Plaintiff’s ads and accounts, which is a publishing decision that is “perforce immune under section 230.” *Roommates.Com*, 521 F.3d at 1170–71. However, while many of the claims are premised on Defendant’s suspension of Plaintiff’s content, there are two other courses of conduct on which some of the claims are premised: Defendant’s failure to provide notice and an appeals process, and Defendant’s sending of repeat emails after the suspension of Plaintiff’s accounts. These actions are not tied to Defendant’s status as publisher—providing notice and an appeals process, even when related to publishing decisions, is not an activity necessarily derived from the status of publisher, and sending emails or other notices about a user’s content is similarly not a traditional element of

publication. See, e.g., *King v. Facebook, Inc.*, 572 F. Supp. 3d 776, 795 (N.D. Cal. 2021) (“That Facebook has the editorial discretion to post or remove content has little do to with the implied promise to explain why content was removed.”). Cf. *Bogard v. TikTok Inc.*, No. 24-CV-03131VKD, 2025 WL

3637035, at (N.D. Cal. Dec. 15, 2025) (finding that affirmative statements by Defendants regarding how they “actually handle reported content” were actionable under section 230(c)(1) in claim for fraudulent and negligent misrepresentation because they were separate from general publisher discretion). Claim Two for violation of Plaintiff's Fifth Amendment rights is entirely based on the notice and appeals process; Claim Eight for intentional infliction of emotional distress and Claim Six for breach of the implied covenant of good faith and fair dealing are partially based on this process and on the sending of emails separate from the actual suspension of his accounts and ads. These claims and partial claims do not arise out of Defendant's status as publisher and are not barred by section 230(c)(1). The remaining claims are based on Defendant's decision to suspend Plaintiff's account pages and advertisements. The Ninth Circuit has consistently held that decisions to publish content, or not publish content, or revoke content from publication, are quintessential publishing functions for which interactive computer services cannot be held liable under section 230(c)(1). *Roommates*, 521 F.3d at 1170–71. However, this does not end the inquiry, as the duties underpinning each cause of action may not arise from Defendant's status as publisher or require it to undertake certain publishing decisions. The source of the duties alleged is different across Plaintiff's constitutional, federal statutory, and contract-based causes of action, and thus a more particularized analysis is warranted. Plaintiff's Claim One is a constitutional cause of action alleging that Defendant violated his First Amendment rights; his Claims Three and Four are related federal statutory claims for conspiracy to violate his civil rights and failure to prevent the conspiracy. These claims are based squarely on Defendant's decision to remove and suspend Plaintiff's content. The First Amendment claim is based solely on Defendant's publishing conduct inherent to its status as publisher and remedy would require it to undertake further publishing activity by reactivating or reposting Plaintiff's content. The conspiracy claim is essentially an allegation that Defendant coordinated with other entities to make its

publishing decisions, and the tools Defendant chooses to use when making publication decisions—including potential consultation with other actors—are part of Defendant's discretion as publisher whether to publish content. Remedy for this claim would also require Defendant to undertake specific publication actions because the alleged outcome and goal of the conspiracy is the removal of Plaintiff's content. It then follows that the failure to prevent conspiracy claim is merely an allegation that Defendant failed to prevent a particular editorial decision from being made and enacted, whose remedy would also require Defendant to undertake specific publishing actions. See *Castronuova v. Meta Platforms, Inc.*, No. 4:24-CV-02523-YGR, 2025 WL 1914860, at (N.D. Cal. June 10, 2025) (“Plaintiff's allegation that these decisions [to remove or exclude her accounts] resulted from a larger conspiracy with the federal government does not change the nature of the underlying conduct as protected publisher activity.”). It is immaterial that these claims are premised on the removal of Plaintiff's content for political reasons—Ninth Circuit courts have consistently held that Section 230(c)(1) immunizes the removal of political content. See, e.g., *Fed. Agency of News*, 432 F. Supp. at 1120 (“Numerous courts have held that Section 230 immunizes a website's removal of political speech.”); *Loomer v. Zuckerberg*, No. 22-CV-02646-LB, 2023 WL 6464133, at (N.D. Cal. Sept. 30, 2023) (holding that plaintiff's claim was barred by section 230(c)(1) where her “theory generally [was] that the alleged enterprise unlawfully bans conservatives from social-media platforms” and her alleged injury was the banning of her account under this scheme). As such, Claims One, Three, and Four are inseparable from Defendant's status or conduct as publisher and are barred by section 230(c)(1). See *Castronuova v. Meta Platforms, Inc.*, No. 4:24-CV-02523-YGR, 2025 WL 1914860, at –4 (N.D. Cal. June 10, 2025) (dismissing First Amendment claim against Meta Platforms under section 230 and finding that other Ninth Circuit courts had also

dismissed constitutional claims pursuant to section 230, citing to *Brittain v. Twitter, Inc.*, 2019 WL 2423375, (N.D. Cal. June 10, 2019), *Lewis v. Google LLC*, 461 F.Supp.3d 938, 955 (N.D. Cal. 2020), *aff'd*, 851 F. App'x 723 (9th Cir. 2021), and *Ebeid v. Facebook, Inc.*, No. 18-CV-07030-PJH, 2019 WL 2059662, at (N.D. Cal. May 9, 2019)). Plaintiff's Claim Seven is brought under 42 U.S.C. § 1981, alleging that Defendant discriminated against him in the making and enforcement of contracts “by suspending

his ads and accounts based on his conservative political viewpoint.” (FAC ¶ 48.) As with the above claims, this claim is based solely on Defendant's suspension and removal of Plaintiff's content and profiles, which is essential publishing activity routinely protected by Section 230(c)(1)'s liability limitations despite the allegations that the removal and deletion of his content were motivated by political reasons. Accordingly, this claim is also barred by Section 230(c)(1). Plaintiff brings two contract claims against Defendant: one for breach of contract, and one for breach of the implied covenant of good faith and fair dealing. Plaintiff's Claim Five for breach of contract alleges that Defendant entered into an implied contract with Plaintiff by accepting his payment of \$653.00 in exchange for approving his advertisements to run for a ten-day period, and that Defendant breached that contract by suspending the advertisements after only one partial day. (FAC ¶ 42.) The Ninth Circuit has found that section 230(c)(1) does not bar claims which seek to hold an internet provider liable as “the counter-party to a contract, as a promisor who has breached,” rather than as a publisher, even when the promise or contract involves performance of a traditional publishing action. *Barnes v. Yahoo!, Inc.*, 570 F.3d 1096, 1107 (9th Cir. 2009). This rule was recently applied to a claim alleging that Meta promised to “take appropriate action” against scam advertisements—the Ninth Circuit found that this promise bound Meta with a contractual duty separate from its status as a publisher, and thus held that section 230 did not bar the claim because “Meta's duty arising from its promise to moderate third-party advertisements is unrelated to Meta's publisher status.” *Calise v. Meta Platforms, Inc.*, 103 F.4th 732, 743 (9th Cir. 2024). However, the Ninth Circuit has also stated that there is no “categorical rule that contract-based claims are never barred by Section 230(c)(1).” *King v. Facebook, Inc.*, No. 22-15602, 2023 WL 5318464, at (9th Cir. Aug. 18, 2023) (unpublished). In affirming the district court, the memorandum opinion in *King* found that “[t]he specific promise to take down explicit content at issue in *Barnes* does not compare to the general promise made by Facebook, and incorporated into its [Terms of Service], to use ‘good faith’ or make an ‘honest’ determination before deciding to exercise publishing or editorial discretion.” *Id.* District courts have used similar logic to distinguish between promises and enforceable contracts to perform some specific action, and broad statements or terms like those found in terms of service

that merely restate a platform's discretion as publisher rather than creating a new, enforceable contractual duty. See *AlAhmed v. Twitter, Inc.*, 603 F. Supp. 3d 857, 884–85 (N.D. Cal. 2022) (holding that section 230 barred all of the suspensionbased claims but that the breach of contract claim was not barred by section 230(c)(1) insofar as it was based on the promise in Facebook's Terms of Service to provide adequate explanation for any suspensions, which was not publishing conduct); *King v. Facebook, Inc.*, 572 F. Supp. 3d 776, 795 (N.D. Cal. 2021) (barring part of the contract claim because “all that Facebook did here was to incorporate into the contract (the Terms of Service) its right to act as a publisher,” which did not defeat section 230, but allowing the part of the contract claim based on Facebook's implied promise to explain its decisions). Plaintiff's breach of contract claim does not allege that Defendant or any of Defendant's agents made specific, enforceable promises to him related to the suspension of his content; instead, he relies on the general contractual underpinnings of his use of Defendant's platforms and payment to Defendant. His statement that Defendant's acceptance of his

payment created a duty to publish his content does not constitute an allegation that Defendant made a specific promise to publish Plaintiff's content which was intended to supersede its discretion as publisher to make publication decisions. Whether based on an implied contract or a document like the Terms of Service, this type of general contract-based allegation has routinely been found insufficient to overcome section 230's bar on liability for publishing conduct. See, e.g., *Goddard v. Google, Inc.*, 640 F. Supp. 2d 1193, 1200–01 (N.D. Cal. 2009) (holding that without separate promise to enforce provisions in contracts like terms and conditions, such provisions are not enforceable promises and may be subject to section 230(c)(1) immunity); *Shared.com v. Meta Platforms, Inc.*, No. 22-CV-02366-RS, 2022 WL 4372349, at (N.D. Cal. Sept. 21, 2022) (“To the extent Facebook's Terms of Service outline a set of criteria for suspending accounts ..., this simply restates Meta's ability to exercise editorial discretion. Such a restatement does not, thereby, waive Defendant's section 230(c)(1) immunity.”); *Newton v. Meta Platforms Inc.*, No. 23-CV-00116-JD, 2023 WL 5749258, at (N.D. Cal. Sept. 6, 2023) (finding that “the general allegation that Facebook did not ‘live up to its written Community Standards’ ” when declining to publish the plaintiffs' content did not allege a specific promise enforceable under Barnes); *King*, 572 F. Supp. 3d

at 795 (holding that section 230(c)(1) immunity applied for contract claim based on the removal of plaintiff's content because “[u]nlike the very specific one-time promise made in Barnes, the promise relied upon here is indistinguishable from ‘paradigmatic editorial decisions not to publish particular content.’ ” (quoting *Murphy v. Twitter, Inc.*, 274 Cal. Rptr. 3d 360, 373 (Cal. Ct. App. 2021)); *Rangel v. Dorsey*, No. 21-CV-08062-CRB, 2022 WL 2820107, at (N.D. Cal. July 19, 2022) (finding that plaintiff's contract claim failed because it was based on the terms of service, which only incorporated Twitter's rights as publisher); *Lloyd v. Facebook, Inc.*, No. 21-CV-10075-EMC, 2022 WL 4913347, at (N.D. Cal. Oct. 3, 2022) (finding that Facebook's Community Standards constituted a general monitoring policy that did not fall under the Barnes framework for avoiding section 230 immunity); *Frenken v. Hunter*, No. 17-CV-02667-HSG, 2018 WL 1964893 (N.D. Cal. Apr. 26, 2018) (finding that Twitter's rules did not create a contract or quasi-contract enforceable under section 230 as to its decision to maintain accounts and transmit messages).⁶ As written, Plaintiff's breach of contract claim is premised solely on Defendant's decision to suspend his accounts and his advertisements. Plaintiff's claim for breach of contract does not properly allege that Defendant entered into a contract intended to overwrite its discretion as publisher, and this claim is therefore barred by section 230(c) (1). Similarly, Plaintiff's sixth claim for breach of the implied covenant of good faith and fair dealing is also barred by section 230(c)(1), insofar as this claim seeks to hold Defendant liable for the suspension of Plaintiff's accounts and ads, for Defendant's decision to continue publishing other content while removing Plaintiff's content, and for the frustration of the contract via Defendant's removal of Plaintiff's content. Any implied promise by Defendant to use “good faith” or any general statements in the terms of service/use about its criteria when making editorial decisions like removing content is not the type of specific, directed promise that could take this claim out from the umbrella of section 230(c)(1), even when the claim is premised on the implied covenant of good faith and fair dealing rather than an explicit term. See *King v. Facebook, Inc.*, No. 22-15602, 2023 WL 5318464, at (9th Cir. Aug. 18, 2023) (unpublished) (“The district court also properly concluded that King's breach of the implied covenant of good faith and fair dealing claim relating to her account

termination was foreclosed by Barnes.... The specific promise to take down explicit content at issue in Barnes does not compare to the general promise made by Facebook, and incorporated into its TOS, to use ‘good faith’ or make an ‘honest’ determination before deciding to exercise publishing or editorial

discretion.”); *Shared.com v. Meta Platforms, Inc.*, No. 22-CV-02366-RS, 2022 WL 4372349 (N.D. Cal. Sept. 21, 2022) (“To the extent Facebook’s Terms of Service outline a set of criteria for suspending accounts (i.e., when accounts have ‘clearly, seriously, or repeatedly’ breached Facebook’s policies), this simply restates Meta’s ability to exercise editorial discretion.”). There is no indication from the factual allegations that Defendant made a promise or enforceable contract surrounding the publishing of Plaintiff’s content that did more than incorporate its editorial discretion—thus, the contract term or goal frustrated by Defendant’s alleged breach of the implied covenant is the same restatement of Defendant’s editorial discretion, which the court explained above does not eliminate section 230(c)(1) limits on liability. Plaintiff’s allegation that Defendant enacted the suspensions “in bad faith” does not thwart section 230(c)(1) immunity. See *Lewis v. Google LLC*, 461 F. Supp. 3d 938, 953–54 (N.D. Cal. 2020) (explaining that section 230(c)(1) prohibits liability for decisions to remove content and that section 230(c)(1) does not have a good faith requirement), *aff’d*, 851 F. App’x 723 (9th Cir. 2021); *Levitt v. Yelp! Inc.*, No. C-10-1321 EMC, 2011 WL 5079526, at (N.D. Cal. Oct. 26, 2011) (“[Section] (c) (1)’s immunity applies regardless of whether the publisher acts in good faith.”). Accordingly, Plaintiff’s Claim Six is also barred to the extent it is based on Defendant’s suspension of Plaintiff’s accounts and removal of his content. Finally, Plaintiff’s Claim Eight for intentional infliction of emotional distress is also barred by section 230(c)(1) to the extent that it is based on Defendant’s removal of his content from its platforms. Plaintiff cannot hold Defendant liable for preventing him from accessing its platforms to publish content or removing his content, as this would hold them liable for its quintessential publishing decisions regarding what information may be published and contained on their platforms. See *Reaud v. Facebook Inc.*, No. 23-CV-06329-AMO, 2024 WL 4126066, at (N.D. Cal. Sept. 9, 2024) (“[T]o the extent that Reaud’s IIED claim is also based on Facebook ‘blocking’ him from Facebook, such a claim similarly seeks to hold Facebook liable for its decisions as a ‘publisher.’ ”); *Karam v. Meta Platforms, Inc.*, No. 3:25CV-01397-AMO, 2025 WL 3079048, at (N.D. Cal. Nov

4, 2025) (finding that section 230 barred claim for intentional infliction of emotional distress because the claim was “related to Meta’s alleged editorial decisions to suspend or ban his account and to permit content posted by other Facebook users”). As such, Claim Eight is barred by section 230(c)(1) to the extent that it is based on the loss of Plaintiff’s content and Plaintiff’s inability to regain access to his content or accounts. Thus, Plaintiff’s Claim One for First Amendment violations, Claim Three for conspiracy under section 1985(3), Claim Four for failure to prevent conspiracy under section 1986, Claim Five for breach of contract, and Claim Seven for discrimination in contracts under section 1981 are blocked in their entirety by section 230(c)(1); Claim Six for breach of the implied covenant of good faith and fair dealing and Claim Eight for harassment and intentional infliction of emotional distress are blocked by section 230(c)(1) to the extent they are based on the suspension and deletion of Plaintiff’s content and profiles; and Claim Two for Fifth Amendment violations is not blocked by section 230(c)(1). C. Failure to State a Claim In addition to section 230(c)(1) immunity, Defendant argues that Plaintiff’s complaint fails to state a plausible claim for each cause of action, and it may be dismissed independently for this reason.⁷ The court analyzes failure to state a claim for each cause of action in the alternative to section 230(c)(1) immunity.

1. Claims One and Two: Violations of Plaintiff’s Constitutional Rights Plaintiff’s first two causes of action allege that Defendant violated his right to free speech and his right to due process under the First and Fifth Amendments to the United States Constitution. The basis for the First Amendment claim is that “Defendant’s suspension of Plaintiff’s advertisements and accounts violated his First Amendment rights to free speech and political expression.” (FAC ¶ 28.) Plaintiff’s Fifth Amendment due process claim alleges

that “Defendant’s failure to provide adequate notice or a functional appeal process for the suspension of Plaintiff’s advertisements and accounts violates procedural due process under the Fifth Amendment.” (FAC ¶ 33.)

Both of Plaintiff’s constitutional claims fail because he has not alleged facts showing that Defendant Meta is a state actor for constitutional purposes. The First Amendment only prohibits the governmental abridgment of speech and does not apply to private actors except in those “exceptional cases” where a private party may be considered a state actor for the purposes of an alleged constitutional deprivation. *Children’s Health Def. v. Meta Platforms, Inc.*, 112 F.4th 742, 753 (9th Cir. 2024), cert. denied, 145 S. Ct. 2846 (2025); *O’Handley v. Weber*, 62 F.4th 1145, 1156 (9th Cir. 2023). The Fifth Amendment’s due process clause also applies exclusively to the federal government, *Bingue v. Prunchak*, 512 F.3d 1169, 1174 (9th Cir. 2008), and it is only extended to private actors in the rare circumstance that there is “a sufficiently close nexus between the (government) and the challenged action of the ... (private) entity so that the action of the latter may be fairly treated as that of the (government) itself.” *Rank v. Nimmo*, 677 F.2d 692, 701 (9th Cir. 1982) (quoting *Warren v. Gov’t Nat’l Mortg. Ass’n*, 611 F.2d 1229, 1232 (8th Cir. 1980)) (alterations in original). A private party may be treated as a government actor when it meets both the “state policy” requirement, under which the alleged constitutional violation must result from a right created by the state or a rule of conduct imposed by the state, and the “state actor” requirement, which may be satisfied by showing that “(1) the private actor performs a traditionally public function; (2) the private actor is a ‘willful participant in joint activity’ with the government; (3) the government compels or encourages the private actor to take a particular action; or (4) there is a ‘sufficiently close nexus’ between the government and the challenged action.” *Children’s Health Def.*, 112 F.4th at 754 (internal citations omitted). Plaintiff has not alleged facts sufficient to show that Defendant acted pursuant to state policy or constituted a state actor such that it may be treated as a governmental entity for the purposes of his constitutional claims. First, with regards to the state policy requirement, Defendant’s suspensions of Plaintiff’s ads and accounts and deletion of his content were conducted pursuant to Defendant’s own content moderation policy and Terms of Service/Advertising Standards, and there are no facts to suggest those actions are traceable to any state-created right or privilege or to a state-imposed rule of conduct. See *Children’s Health Def.*, 112 F.4th at 754–55. Plaintiff’s claims that Defendant coordinated with “government-aligned entities” to “moderate electionrelated content” falls far short of the threshold for showing

that a private actor enforced a government rule rather than its

own rules. See *O’Handley v. Weber*, 62 F.4th 1145, 1156– 57 (9th Cir. 2023) (holding that private company’s removal of a post marked as election misinformation by the California Office of Elections Cybersecurity did not establish that the company removed the post pursuant to a state-imposed rule); accord *Children’s Health Def.*, 112 F.4th at 754–55 (finding that general alignment of government goals with goals or actions of private actor does not establish that a government rule or right was the cause of those actions). There are no other factual allegations that go beyond these accusations of coordination and partnership, and there is nothing to suggest that anything more than the broad alignment of goals occurred. As such, Plaintiff has not met the state policy requirement. Second, Plaintiff has not alleged any facts sufficient to show that Defendant was a state actor. Plaintiff primarily invokes the public function test, arguing that Defendant’s social media platforms constitute “public forums” or “modern public squares” such that it performs a traditional public function. (Pl.’s Resp. 11–12, Dkt. 52.) However, “merely hosting

speech by others is not a traditional, exclusive public function and does not alone transform private entities into state actors subject to First Amendment constraints.” *Manhattan Cmty. Access Corp. v. Halleck*, 587 U.S. 802, 812 (2019); accord *Howard v. Am. Online, Inc.*, 208 F.3d 741, 754 (9th Cir. 2000) (finding that an internet information service was not a “quasi-public utility” rendered a state actor for constitutional purposes). The Ninth Circuit has recently held that online social media companies are not transformed into state actors because of their broad hosting of speech. *Prager Univ. v. Google LLC*, 951 F.3d 991, 996–99 (9th Cir. 2020) (rejecting the argument that YouTube performs a public function and is therefore a state actor because (1) hosting speech on a private platform is not an activity traditionally performed by the government, (2) the ubiquity of online social media does not change the analysis, (3) YouTube did not perform “necessary municipal functions,” (4) YouTube is not a public forum, and (5) a private entity does not become a public forum by opening its property for public discourse). The reasoning in *Prager University* applies here — Defendant’s operation of Facebook and Instagram does not render it a state actor under the public function test. See *Zimmerman v. Facebook, Inc.*, No. 19-CV-04591-VC, 2020 WL 5877863, at (N.D. Cal. Oct. 2, 2020) (applying the

reasoning of *Prager University* to find that Facebook is not rendered a state actor by virtue of providing a “digital town square”). In addition, Plaintiff’s allegations are insufficient to meet the joint action, state compulsion, and nexus tests. Plaintiffs alleging joint action must show that there has been a specific agreement between the private actor and the government such that their actions are “inextricably intertwined.” *Children’s Health Def.*, 112 F.4th at 755–56. Plaintiff’s allegation that Defendant partnered or coordinated with government-aligned entities that “disproportionately flag conservative content” to “moderate election content,” (FAC ¶¶ 17, 29), falls far short of the specificity necessary to establish “an agreement or a conspiracy to violate [the plaintiff’s] rights in particular.” *Id.* at 756 (quoting *Brunette v. Humane Soc’y of Ventura Cnty.*, 294 F.3d 1205, 1212 (9th Cir. 2002)). The FAC does not indicate that there was any express agreement to take particular actions with regard to Plaintiff or anyone else. *Id.* (“Without plausible allegations of an agreement to take specific action, we cannot say that Meta’s conduct is fairly attributable to the government.”). Plaintiff has also not met the state compulsion test because he did not properly allege that the government threatened adverse action or otherwise imposed incentives that essentially compelled Defendant to comply with its requests. *Children’s Health Def.*, 112 F.4th at 759. The FAC alleges only that Defendant partnered with government-aligned entities and that Defendant’s actions were “supported by coordinated efforts,” none of which shows coercion by the government. Finally, Plaintiff did not allege sufficient facts to satisfy the nexus test, which asks “whether ‘there is such a close nexus between the State and the challenged action that the seemingly private behavior may be fairly treated as that of the State itself.’ ” *Kirtley v. Rainey*, 326 F.3d 1088, 1095 (9th Cir. 2003) (quoting *Brentwood Acad. v. Tenn. Secondary Sch. Athletic Ass’n*, 531 U.S. 288, 295 (2001)). Plaintiff’s allegations are inadequate to meet the high burden of showing that Defendant’s actions “are fairly attributable to the state.” *Kirtley*, 326 F.3d at 1095 (quoting *Sutton v. Providence St. Joseph Med. Ctr.*, 192 F.3d 826, 836 (9th Cir. 1999)). Overall, Plaintiff has failed to “allege facts supporting an inference that the government ‘is responsible for the specific conduct of which [he] complains.’ ” *Children’s Health Def.*, 112 F.4th at 754 (quoting *Ohno v. Yasuma*, 723 F.3d 984, 994 (9th Cir. 2013)). See also *Rogalinski v. Meta Platforms*,

Inc., No. 22-16327, 2023 WL 7876519 (9th Cir. Nov. 16, 2023) (unpublished) (affirming the district court finding that Meta Platforms was not a state actor based on allegations that it coordinated with the government to target online misinformation); *Hart v. Facebook, Inc.*, No. 23-15858, 2024 WL 1693355

(9th Cir. Apr. 19, 2024) (unpublished) (affirming the district court holding that Facebook was not a state actor when the allegations only demonstrated “consulting and information sharing” with the government on issues of content moderation); *Fed. Agency of News LLC v. Facebook, Inc.*, 432 F. Supp. 3d 1107, 1121–27 (N.D. Cal. 2020) (finding that Meta was not a state actor under the First Amendment and collecting cases holding the same). Plaintiff cannot cure his First Amendment claim because it is separately barred by section 230. Moreover, there is no indication that he can successfully amend his Fifth Amendment claim with facts that would cure the significant deficiencies with regard to state action because the entirety of his allegations involving the government pertain to the suppression of his content rather than the deficiencies in Defendant's review and appeal process. As such, his First and Fifth Amendment claims are DISMISSED without leave to amend. 2. Claim Three: Conspiracy under 42 U.S.C. § 1985(3) Plaintiff's Claim Three is for conspiracy to deprive him of his civil rights under 42 U.S.C. § 1985(3). While Plaintiff's claim is unclear, it appears that he brings this cause of action pursuant to the first clause of section 1985(3), which covers conspiracy to deprive “any person or class of persons of the equal protection of the laws.”⁹ To be successful under this clause of section 1985(3), plaintiffs must prove the following elements: “(1) the existence of a conspiracy to deprive the plaintiff of the equal protection of the laws; (2) an act in furtherance of the conspiracy[;] and (3) a resulting injury.” *Addisu v. Fred Meyer, Inc.*, 198 F.3d 1130, 1141 (9th Cir. 2000). Although section 1985(3) has been interpreted to reach private conspiracies to violate constitutionally protected rights, conspiracy claims based on alleged violations of First Amendment rights must show either that the state was directly involved in the conspiracy or that the conspiracy intended to influence the activity of the state.¹⁰ *United Bhd. of Carpenters & Joiners of Am., Loc. 610 v. Scott*, 463 U.S. 825, 830–31 (1983)

Plaintiff's section 1985(3) claim fails for multiple independent reasons. First, he has failed to state a claim for an underlying constitutional violation, which is essential to a section 1985(3) claim. See, e.g., *Kay v. Placer Cnty.*, 219 F. App'x 679, 682 (9th Cir. 2007); *Peloza*, 37 F.3d at 524 (“[Plaintiff's] allegations are insufficient to support a claim based on a violation of his constitutional rights of free speech and due process. Accordingly, his allegations of a conspiracy to violate these constitutional rights do not state a claim.”). Moreover, Plaintiff has failed to show that he is part of a protected class under the first clause of section 1985(3). The Supreme Court has interpreted the “equal protection” language of section 1985(3) to mean “that there must be some racial, or perhaps otherwise class-based, invidiously discriminatory animus behind the conspirators' action.” *Griffin v. Breckenridge*, 403 U.S. 88, 102 (1971). In elaborating on the bounds of “otherwise class-based” animus proscribed by this section, the Supreme Court has held that bias on account of economic views or status is not covered, and has opined that it is a “close question” whether the section may “be construed to reach conspiracies aimed at any class or organization on account of its political views or activities.” *Scott*, 463 U.S. at 837. The Ninth Circuit has further narrowed this analysis to require that plaintiffs bringing section 1985(3) conspiracy claims allege that they are members of a class that “the courts have designated ... a suspect or quasisuspect classification requiring more exacting scrutiny or that Congress has indicated through legislation ... require[s] special protection.” *Schultz v. Sundberg*, 759 F.2d 714, 718 (9th Cir. 1985); accord *Sever v. Alaska Pulp Corp.*, 978 F.2d 1529, 1536–37 (9th Cir. 1992) (quoting *Schultz* for the general rule that classes under section 1985(3) must show that there is a governmental determination that class members require special assistance in protecting their civil rights). Defendant alleges in his complaint that he was targeted for being a “conservative,” (FAC ¶ 36), that he was targeted for “promoting conservative principles,” (FAC ¶ 28), that the conspiracy was “part of a broader effort to suppress conservative voices,” (FAC ¶ 39), and that

Defendant “target[ed] conservative content,” (FAC ¶ 45). He makes no mention of any other class besides “political conservatives” or “people who express politically conservative viewpoints,” nor does he allege that he was targeted for being a member of the Republican party. He does not identify any determination by the courts or by Congress that such a class requires special

protection, and Plaintiff makes no argument that he is part of a class with governmentally-determined protection, only repeating his conclusory allegations that Defendant conspired to “deprive equal protection” and that “bias evidence” supports this conclusion. (Pl.’s Resp. 12, Dkt. 52.) This is insufficient to meet the class-based animus requirement of a section 1985(3) claim for conspiracy to deprive Plaintiff of equal protection.¹¹ Finally, Plaintiff has failed to allege a conspiracy because he has not alleged facts to support his allegation, and “[a] mere allegation of conspiracy without factual specificity is insufficient.” *Karim-Panahi v. Los Angeles Police Dep’t*, 839 F.2d 621, 626 (9th Cir. 1988). The FAC says the following about the alleged conspiracy: “Defendant’s actions were facilitated by partnerships with government-aligned entities, such as the Elections Infrastructure Information Sharing and Analysis Center (EI-ISAC), and third-party fact-checking organizations like PolitiFact, which disproportionately flag conservative content, implicating state action.” (FAC ¶ 17.) Defendant’s conspiracy with “third-party fact-checkers and government-aligned entities” allegedly involved “regular coordination with federal and state officials to moderate election-related content,” and Plaintiff’s evidence for this conspiracy includes “Defendant’s selective enforcement, inconsistent fact-checker emails, and Zuckerberg’s admission of bias, supported by coordinated efforts with fact-checkers and EI-ISAC.” (FAC ¶¶ 29, 36.) These allegations do not constitute the type of specific factual allegations required to plausibly allege a conspiracy—no timeline is established, no persons involved are identified except Mr. Zuckerberg, no objective is identified or defined beyond “flag[ging]” conservative content and moderating election-related content, and no “meeting of the minds” or “agreement” is described with any level of detail beyond cursory legal conclusions.¹² See *Steshenko v. Albee*, 70 F. Supp. 3d 1002, 1015–16 (N.D. Cal. 2014) (finding that sufficient conspiracy allegations in the Ninth Circuit should include the alleged specific agreement between the conspirators, the scope of the conspiracy, the role of the defendants in the conspiracy, how the conspiracy operated, when the conspiracy operated, and how the acts taken against the plaintiff furthered the conspiracy). While it may be possible for Plaintiff to allege further facts about the claimed conspiracy, there is no indication

from the complaint that Plaintiff intends to allege any other group classification that would qualify under section 1985(3), and he cannot successfully amend his First Amendment constitutional claim. As such, Claim Three is DISMISSED without leave to amend. 3. Claim Four: Failure to Prevent Conspiracy under 42 U.S.C. § 1986 Plaintiff’s fourth claim is brought pursuant to 42 U.S.C. § 1986. Section 1986 “provides a cause of action for damages where a valid claim for relief has been stated under section 1985.” I.H. by & through *Hunter v. Oakland Sch. for Arts*, 234 F. Supp. 3d 987, 994 (N.D. Cal. 2017); accord *Karim-Panahi*, 839 F.2d at 626. Because Plaintiff failed to state a valid claim under section 1985(3), he has also failed to state a claim under section 1986; similarly, because he cannot successfully amend his section 1985(3) claim, Claim Four is DISMISSED without leave to amend. 4. Claim Five: Breach of Contract Plaintiff’s fifth claim for breach of contract alleges that Defendant entered into an implied contract with Plaintiff by accepting his payment of \$653.00 in exchange for approving his advertisements to run for a ten-day period, and that Defendant breached that contract by suspending the advertisements after only one partial day. (FAC ¶ 42.) As an initial matter, Plaintiff’s claim fails because it is premised on an implied contract that is superseded by the express, written contract between the parties. “[I]t is well settled that an

action based on an implied-in-fact or quasicontract cannot lie where there exists between the parties a valid express contract covering the same subject matter.” *Be In, Inc. v. Google Inc.*, No. 12–CV–03373–LHK, 2013 WL 5568706, at (N.D. Cal. Oct. 9, 2013) (quoting *Lance Camper Mfg. Corp. v. Republic Indem. Co.*, 51 Cal. Rptr. 4th 622, 628 (Cal. Ct. App. 1996)). In such circumstances, the express contract controls. Here, although Plaintiff does not discuss the express contracts in his complaint, there is judicially-noticed evidence of express contracts between the parties in the form of Meta's Terms of Service, Instagram's Terms of Use, and Meta's Advertising Standards. Plaintiff's claim that Defendant's acceptance of his payment created an implied contract by which they agreed to run his ads is directly contradicted by the Advertising Standards and terms of service/use, which reserve to Defendant the ability to reject

or restrict advertisements “for violation of [its] policies at any time.” (Duffy Decl. Ex. C, Dkt. 50-4, at 4.) Plaintiff's alleged implied contract thus covers the same subject matter (Defendant's conditions for running the ads)¹³ and requires a different result than the express contract, which is not allowed under California contract law. See *O'Connor v. Uber Techs., Inc.*, 58 F. Supp. 3d 989, 1001 (N.D. Cal. 2014) (finding that the plaintiffs' breach of contract claim failed because the judicially-noticed Terms and Conditions were an express contract superseding the alleged implied contract). Accordingly, Plaintiff has failed to state a claim for breach of contract. However, even if the court liberally interprets Plaintiff's breach of contract claim to be based on the Terms of Service/ Use and the Advertising Standards (rather than an implied contract), the claim would still fail because it fails to state a plausible claim.¹⁴ If Plaintiff's contract claim had been properly brought pursuant to the express contract, it would be barred by the terms of that contract, which give Defendant the right to review and remove his content at any time.¹⁵ (E.g., Duffy Decl. Ex. C, Dkt. 50-4, at 20 (“We reserve the right to reject, approve or remove any ad for any reason, in our sole discretion...”).) As for the contract allegations tending toward showing a breach based on an implied promise to operate with fairness and transparency, the express contract once again controls, and no specific contract terms have been identified as the basis of the breach. *Coronavirus Rep. v. Apple, Inc.*, 85 F.4th 948, 957 (9th Cir. 2023) (plaintiffs did not state a claim for breach of contract where they did not identify the relevant specific provisions of the “developer agreement” or show how the contract was breached). Moreover, Plaintiff has not alleged facts that would support finding any of the various policies in Defendant's Terms of Service/Use and Advertising Standards to be enforceable promises under California contract law. See *Caraccioli v. Facebook, Inc.*, 167 F. Supp. 3d 1056 (N.D. Cal. 2016) (“[W]hile Facebook's Terms of Service ‘place restrictions on users' behavior,’ they ‘do not create affirmative obligations.’ ” (quoting *Young v. Facebook, Inc.*, No. 5:10-CV-03579-JF/PVT, 2010 WL 4269304, at (N.D. Cal. Oct. 25, 2010)); *Goddard v. Google, Inc.*, 640 F. Supp. 2d 1193, 1200 (N.D. Cal. 2009) (“Under California law, ‘if a contract is to be a basis of liability for the defendant's violation of [its own terms and conditions] ... , it must be a contract in which the defendant promises to abide by [these terms].’ ” (edited for clarity)

(quoting *Souza v. Westlands Water Dist.*, 38 Cal. Rptr. 3d 78, 89 (Cal. Ct. App. 2006)). Cf. *King v. Facebook, Inc.*, 572 F. Supp. 3d 776, 789 (N.D. Cal. 2021) (finding that plaintiff had minimally shown that “it [was] plausible that Facebook is obligated to provide at least some information in addition to the fact that the account has been suspended or terminated”). While the language of the Terms of Service/Use and Advertising Standards do not seem to create the kind of enforceable promise necessary for this claim—for example, by stating that advertisers whose ads are rejected will “typically” have an opportunity to request review—the court cannot say at this juncture that Plaintiff cannot successfully amend this claim to identify the specific provisions that were breached. Additionally, although the breach of contract claim as written is

blocked by section 230(c)(1), it is possible for Plaintiff to amend this claim such that section 230(c) (1) would not apply. As such, Plaintiff's claim for breach of contract is DISMISSED with leave to amend to the extent that it is not barred by section 230(c)(1). 5. Claim Six: Breach of the Implied Covenant of Good Faith and Fair Dealing Plaintiff's sixth claim states that Defendant violated the implied covenant of good faith and fair dealing "by suspending Plaintiff's ads and accounts in bad faith, without providing specific violations despite appeals, and targeting conservative content while allowing similar ads from other viewpoints." (FAC ¶ 45.) Plaintiff has failed to state a claim for breach of the implied covenant of good faith and fair dealing based on both the suspension and deletion of his content and accounts and based on Defendant's process for notifying him of their publishing decisions and responding to his appeals. The implied covenant of good faith and fair dealing is tied to an existing specific contractual obligation—it is well established that "the scope of conduct prohibited by the covenant of good faith is circumscribed by the purposes and express terms of the contract." *Carma Devs. (Cal.), Inc. v. Marathon Dev. California, Inc.*, 826 P.2d 710, 727 (Cal. 1992); accord *Lewis v. Google LLC*, 461 F. Supp. 3d 938, 961 (N.D. Cal. 2020). In California, claims for breach of this implied covenant must allege the specific contract term that was frustrated by Defendant's conduct. This claim suffers from the same deficiencies as the breach of contract claim—

he has not identified the specific contract provisions that were thwarted, and he has not alleged facts to support the finding that those provisions were enforceable contract terms rather than general policies. Moreover, the implied covenant of good faith and fair dealing cannot require a party to go beyond the terms of a contract and cannot contradict the express terms. See *Song fi Inc. v. Google, Inc.*, 108 F. Supp. 3d 876, 885 (N.D. Cal. 2015) ("[I]f defendants were given the right to do what they did by the express provisions of the contract there can be no breach." (quoting *Carma Devs.*, 826 P.2d at 728)). Here, Defendant's Advertising Standards specifically give Defendant the right to reject ads "for any reason, in [its] sole discretion." (Duffy Decl. Ex. C, Dkt. 50-4, at 14.) Thus, Defendant is explicitly allowed under the terms of the contract to reject Plaintiff's ads for any reason whenever it wants. Finally, Plaintiff's claims that Defendant violated the implied covenant through its non-functional appeals process is also not borne out by the facts as alleged. Plaintiff states that he replied to the emails about the suspension of his ads requesting further information and that the links to the appeals portal were broken, and that despite his entreaties he was never given further explanation as to the rejections of his content. While this is unfortunate, the Advertising Standards explicitly include the means for requesting review of ad rejections—through requesting a review "in Account Quality"—and do not guarantee that requests for review will be granted or that specific violations information will be provided to advertisers. (Id. at 5.) "[I]t is well settled the implied covenant does not extend so far as to impose enforceable duties that are beyond the scope of the contract, nor does the covenant prohibit actions that are expressly authorized by the contract's terms." *Jenkins v. JPMorgan Chase Bank, N.A.*, 156 Cal. Rptr. 3d 912, 935 (2013), as modified (June 12, 2013), disapproved of on other grounds by *Yvanova v. New Century Mortg. Corp.*, 365 P.3d 845 (Cal. 2016). The express contract here does not require that Plaintiff be given detailed information or an opportunity to appeal if his ads are rejected, and it expressly allows Defendant to reject ads for any reason in its sole discretion. Without more, the factual assertions do not state a claim for breach of the implied covenant of good faith and fair dealing. As with the breach of contract claim, although the court is skeptical that Plaintiff can successfully amend this claim, it cannot be categorically ruled out. As such, Claim Six is DISMISSED with leave to amend

6. Claim Seven: Discrimination in Contracts under 42 U.S.C. § 1981 Plaintiff's seventh claim alleges that Defendant violated 42 U.S.C. § 1981 because "Defendant's actions—approving his ads, accepting payment, then suspending them without cause while permitting liberal ads—denied him equal contractual rights, motivated by viewpoint bias." (FAC ¶ 48.) Section 1981 prohibits only racial discrimination in the making and enforcement of private contracts. E.g., *Shah v. Mt. Zion Hosp. & Med. Ctr.*, 642 F.2d 268, 272 (9th Cir. 1981). Plaintiff has not alleged any facts to suggest that Defendant racially discriminated against him or that his race was the reason he was allegedly denied equal contractual rights, and thus he has failed to state a claim under section 1981. Plaintiff's complaint contains no hint that he could amend this claim to allege racial discrimination, and this claim is barred by section 230(c)(1); accordingly, Claim Seven is DISMISSED without leave to amend. 7. Claim Eight: Harassment and Intentional Infliction of Emotional Distress Plaintiff's final claim is for harassment and intentional infliction of emotional distress ("IIED") due to "Defendant's ongoing pattern of sending threatening and harassing emails after the permanent suspension of Plaintiff's accounts."¹⁶ (FAC ¶ 50.) He alleges that these emails caused him "severe emotional distress," which "was compounded by the loss of irreplaceable personal content and the public reputational harm from false allegations of policy and copyright violations." (FAC ¶ 51.) Despite the fact that section 230(c)(1) does not serve as a total bar to this claim, Plaintiff still fails to state a claim on which relief can be granted. "A cause of action for intentional infliction of emotional distress exists when there is '(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct.' " *Reaud v. Facebook Inc.*, No. 23-CV-06329-AMO, 2024 WL 4126066 (N.D. Cal. Sept. 9, 2024) (quoting *Hughes v. Pair*, 209 P.3d 963, 976 (Cal. 2009)). Conduct is outrageous if it is so extreme that it is outside the bounds of what is tolerated in a civilized

community. *Zhang v. Twitter Inc.*, No. 23-CV-00980-JSC, 2023 WL 5493823, at (N.D. Cal. Aug. 23, 2023); *Corales v. Bennett*, 567 F.3d 554, 571 (9th Cir. 2009). Moreover, "[a]n IIED claim 'calls for intentional, or at least reckless conduct—conduct intended to inflict injury or engaged in with the realization that injury will result.' " *Reaud*, 2024 WL 4126066, at (quoting *Davidson v. City of Westminster*, 649 P.2d 894, 901 (Cal. 1982)). Plaintiff has not identified any conduct by Defendant beyond the sending of five emails: two of the emails were identical, informing Plaintiff that his accounts or advertisements had been identified as and restricted for using copyrighted music; four of the messages informed Plaintiff of Defendant's findings upon reviewing the content; and one sent "on behalf of Universal Music Group" included information about the penalties for violations of copyright law and the possibility of a lawsuit. (FAC ¶ 13.) None of this conduct plausibly rises to the level of "outrageous" behavior. There are also no facts alleged to support the contention that Defendant's conduct was intended to injure or committed with the knowledge that sending such emails was likely to cause extreme emotional distress, and the allegations regarding Plaintiff's emotional reaction are barebones. These allegations

are insufficient to give rise to the inference that Defendant is liable under this tort claim. As such, he has failed to state a plausible claim for IIED on which relief may be granted and Claim Eight is DISMISSED. However, to the extent that this claim is not barred by section 230(c)(1), the court grants Plaintiff leave to amend

CONCLUSION For the foregoing reasons, Defendant's Motion to Dismiss is GRANTED. Claims 1, 2, 3, 4, and 7 are DISMISSED without leave to amend. Plaintiff is GRANTED leave to amend Claims 5, 6,

and 8, to the extent that these claims are not barred by Section 230(c)(1) in accordance with this Order. Plaintiff has thirty (30) days from the entry of this Order to file any amended complaint. Failure to file an amended complaint will result in the dismissal of this action. IT IS SO ORDERED